

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 24-23

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SAMSUNG ELECTRONICS AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD F/K/A HYUNDAI MERCHANT MARINE, CO.  
LTD.,

RESPONDENT.

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**JOINT MOTION FOR ENTRY OF RULE 502(d) ORDER**

Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) and Respondent HMM Co., Ltd f/k/a Hyundai Merchant Marine, Co. Ltd., (“Respondent” or “HMM”), hereby move, pursuant to 46 C.F.R. § 502.12 and Rule 502(d) of the Federal Rules of Civil Procedure, for the entry of an order under Rule 502(d) in this Proceeding.

As advised in the July 11, 2025, Joint Status Report, the Parties have now entered into a ESI Protocol for the production and handling of electronically stored information. The ESI Protocol requires the parties to seek an Order pursuant to F.R.Civ.P. 502(d) regarding the inadvertent production of attorney-client privileged materials. The Parties jointly attach a draft Rule 502(d) Order for Your Honor’s consideration and express our apologies as the draft was inadvertently omitted from the Joint Status Report filed last Friday.

Dated: July 15, 2025

Respectfully Submitted,

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Merchant Marine Co., Ltd.*

## Attachment 1

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**[PROPOSED] RULE 502(d) ORDER**

Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) and Respondent HMM Co., Ltd f/k/a Hyundai Merchant Marine, Co. Ltd., (“Respondent” or “HMM”), having stipulated, by and through their counsel of record, that, subject to the Presiding Officer’s order, the Presiding Officer may enter an Order pursuant to FRCP 502(d) in the following terms,

AND GOOD CAUSE APPEARING THEREFOR,

IT IS HEREBY ORDERED:

1. The production of privileged or work-product protected documents, electronically stored information (“ESI”) or information, whether inadvertent or otherwise, is not a waiver of the privilege or protection from discovery in this case or in any other federal or state proceeding. This

Order shall be interpreted to provide the maximum protection allowed by Federal Rule of Evidence 502(d).

2. Nothing contained herein is intended to or shall serve to limit a party's right to conduct a review of documents, ESI, or information (including metadata) for relevance, responsiveness, and/or segregation of privileged and/or protected information before production.

3. The provisions of Rule 502(b) do not apply.

SO ORDERED:

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Alex M. Chintella  
*Administrative Law Judge*

DATED: \_\_\_\_\_